

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3097

By: Jenkins

AS INTRODUCED

An Act relating to public finance; amending 62 O.S. 2021, Section 34.42, as last amended by Section 3, Chapter 199, O.S.L. 2025 (62 O.S. Supp. 2025, Section 34.42), which relates to agency budget work programs; restrictions with respect to agency records; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 62 O.S. 2021, Section 34.42, as last amended by Section 3, Chapter 199, O.S.L. 2025 (62 O.S. Supp. 2025, Section 34.42), is amended to read as follows:

Section 34.42. A. On or before the first day of June in each year, or as soon thereafter as possible, all agencies shall file agency budgets with the Director of the Office of Management and Enterprise Services. Copies of all agency budgets shall also be made available electronically to the staff of the Joint Legislative Committee on Budget and Program Oversight.

B. The required instructions, content and format of agency budgets shall be developed by the staff of the Budget Division of the Office of Management and Enterprise Services.

1 C. 1. The agency budget shall include a description of all
2 funds available to the agency for expenditure and set out allotments
3 requested by the agency by quarter and the entire fiscal year.

4 2. The agency budget shall be accompanied by an organizational
5 chart of the agency, a statement of agency mission and program
6 objectives.

7 3. The agency budget shall delineate agency spending by such
8 categories and with at least as much detail as is specified in the
9 legislative appropriation and as prescribed by the Director of the
10 Office of Management and Enterprise Services.

11 4. Agency budgets shall be signed by the executive officer of
12 each agency.

13 5. The executive officer shall certify that the agency is in
14 complete compliance with the requirements of Section 34.11.3 of this
15 title and Section 3-114 of Title 65 of the Oklahoma Statutes.

16 6. The agency director shall certify and attest that the agency
17 has not developed, implemented, or attempted to enforce any policy
18 that:

19 a. restricts legislative access to records in the agency's
20 custody when such access is specifically provided to
21 legislators by statute,

22 b. requires legislators to sign or agree to any
23 nondisclosure provisions as a condition of accessing
24 such records, or

1 c. limits the location or manner in which legislators may
2 review such records, including policies requiring
3 records to be reviewed only at the agency's offices or
4 other specified venues.

5 D. A "request officer" shall be designated by each state agency
6 for the purpose of making program and allotment requests.

7 E. Executive officers of agencies shall cooperate with the
8 Office of Management and Enterprise Services staff and Joint
9 Committee staff in developing program budgeting categories.

10 F. All funds available or expected to be made available to any
11 agency, including nonfiscal appropriations, shall not be available
12 for expenditure until the request officer of the agency has complied
13 with the applicable provisions of the Oklahoma State Finance Act and
14 has received approval of such request for funds from the Director of
15 the Office of Management and Enterprise Services.

16 SECTION 2. This act shall become effective July 1, 2026.

17 SECTION 3. It being immediately necessary for the preservation
18 of the public peace, health or safety, an emergency is hereby
19 declared to exist, by reason whereof this act shall take effect and
20 be in full force from and after its passage and approval.

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